

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

June 29, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

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50.	Bufkin v. Vista Del Rio Housing Partners, LP 2024- 01406584	MOTION NO. 1 Defendant City of Orange’s Demurrer to the Second Cause of Action of the Second Amended Complaint (“SAC”) is OVERRULED. The special demurrer for uncertainty is also OVERRULED. Second Cause of Action – Dangerous Condition of Public Property The Government Claims Act (“Act”) provides that “[e]xcept as otherwise provided by statute... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815(a).) Government Code section 835 “prescribes the conditions under which a public entity may be held liable for injuries caused by a dangerous condition of public property.” (<i>Cordova v. City of Los Angeles</i> (2015) 61 Cal.4th 1099, 1105.) To state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity. (<i>Soliz v. Williams</i> (1999) 74 Cal.App.4th 577, 584-585.) “It is a plaintiff’s responsibility to plead facts sufficient to show [their] cause of action lies outside the breadth of any applicable statutory immunity.” (Ibid. (cleaned-up).) Moving Defendant argues the SAC is uncertain because the subject accident did not occur within the City of Orange, but was located in Santa Ana. Moreover, Defendant argues there are no specific allegations against the City of Orange that are separate and apart from those also asserted against the City of Santa Ana. Therefore, the Moving Defendant cannot determine what claims are directed against it as compared to those alleged against other defendants. As stated in a prior order, Plaintiffs allege the shared intersection of Garden Grove Blvd./Memory Lane and The City Drive and adjacent roadway (as to each City) are jointly owned/controlled by both City of Santa Ana and City of Orange. (FAC, ¶7.) Whether the Subject Roadway was actually owned and controlled by both the City of Santa Ana and City of Orange must be assumed to be true for purposes

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		of demurrer. Therefore, the court finds the SAC is not uncertain for this reason and the reasons stated below. Moving Defendant next argues the SAC fails to state with particularity what made the property dangerous. Instead, the SAC references a laundry list of separate aspects of the roadway and concludes that each aspect constituted a “dangerous condition.” While the SAC’s list of dangerous conditions is more expansive than the prior complaint, Defendant contends it is still unclear how both entities are liable for these conditions. The court disagrees. Plaintiffs have alleged with particularity the dangerous condition of the Subject Roadway. The Subject Roadway is anomalous because unlike a typical T-intersection, it allows continued access beyond the end of the road. (SAC, ¶ 7.) The physical design features of the Subject Roadway cause motorists not to perceive the end of the roadway because the pavement surface, width, and grade continue uninterrupted from the public roadway directly into the Premises’ parking lot and driveway. Likewise, the intersection and approaching roadway aligns directly with the property entrance, visually suggesting the road continues through. (SAC, ¶ 30(a).) These are just some of the allegations in paragraph 30 of the SAC regarding the dangerous condition of the Subject Roadway, and such defects are not related to roadway markings, traffic control signals or warning signs. Thus, the court finds that Plaintiffs have alleged with particularity the dangerous condition of the Subject Roadway and the City of Orange’s alleged joint ownership of the property. Accordingly, the demurrer to the second cause of action is OVERRULED. Defendant shall file an answer within 5 days. MOTION NO. 2 Defendant City of Orange’s Demurrer to the Second Cause of Action of the Second Amended Complaint (“SAC”) is OVERRULED. The special demurrer for uncertainty is also OVERRULED. Second Cause of Action – Dangerous Condition of Public Property The Government Claims Act (“Act”) provides that “[e]xcept as otherwise provided by statute... [a] public entity is not liable

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		for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815(a).) Government Code section 835 "prescribes the conditions under which a public entity may be held liable for injuries caused by a dangerous condition of public property." (<i>Cordova v. City of Los Angeles</i> (2015) 61 Cal.4th 1099, 1105.) To state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity. (<i>Soliz v. Williams</i> (1999) 74 Cal.App.4th 577, 584-585.) "It is a plaintiff's responsibility to plead facts sufficient to show [their] cause of action lies outside the breadth of any applicable statutory immunity." (Ibid. (cleaned-up).) Moving Defendant argues that allegations regarding joint ownership of the Subject Roadway between the City of Orange and the City of Santa Ana are conclusory. Again, whether such allegation is true remains to be seen, but for purposes of demurrer the allegation is sufficient. Moving Defendant next argues the SAC fails to plead with particularity that the Subject Roadway constituted a dangerous condition. Instead, the SAC references a laundry list of separate aspects of the roadway and concludes that each aspect constituted a "dangerous condition" without any specific facts about how Moving Defendant is responsible for these conditions. The court disagrees. Plaintiffs have alleged with particularity the dangerous condition of the Subject Roadway. The Subject Roadway is anomalous because unlike a typical T-intersection, it allows continued access beyond the end of the road. (SAC, ¶ 7.) The physical design features of the Subject Roadway cause motorists not to perceive the end of the roadway because the pavement surface, width, and grade continue uninterrupted from the public roadway directly into the Premises' parking lot and driveway. Likewise, the intersection and approaching roadway aligns directly with the property entrance, visually suggesting the road continues through. (SAC, ¶ 30(a).) These are just some of the allegations in paragraph 30 of the SAC regarding the dangerous condition of the Subject Roadway, and such defects are not related to roadway markings, traffic control signals or warning signs, illumination or traffic speed. Based on the allegations of the SAC, the court finds the SAC is not uncertain. Plaintiffs have alleged with particularity the

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		dangerous condition of the Subject Roadway and the City of Santa Ana's alleged joint ownership of the property. Accordingly, the demurrer to the second cause of action is OVERRULED. Defendant shall file an answer within 5 days. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. Plaintiffs shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	DEMURRER Defendants Christopher Hurtado, Hayley Jane Hurtado, Superior Roofing Systems, inc., and Jeffrey B. Moreno's Demurrer to the Complaint is OVERRULED. <u>Defendants' Request for Judicial Notice</u> as to Exhibits 1-4 is DENIED. <u>Defendant Jeffrey B. Moreno's Notice of Joinder:</u> The court grants defendant Moreno's request to join. <u>Meet and Confer</u> The parties have demonstrated efforts at a meet and confer as required. (ROA 242). <u>Contract Based Claims</u> Defendants demur to the first (breach of oral contract), second (breach of implied contract), and eighth (promissory estoppel) causes of action on the grounds the contract based claims fail under the statute of frauds. First and Second Causes of Action Civil Code § 1624(a)(1) provides that a contract that cannot be performed in one year must be in writing and signed by the party against whom enforcement is sought. Defendants contend the alleged agreement by Plaintiff to sell the family business to defendants Chris and Hayley by which they would incorporate the business; pay a to be valued purchase price; make \$10,000 monthly payments; and complete a "Formal Business Valuation" could not be performed within a year. They contend this "multi-year" obligation cannot be enforced and is barred by the statute of frauds because it was never reduced to writing.

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		In opposition, Plaintiff argues the Complaint does not allege a multi-year term incapable of completion within one year, but pleads an agreement to obtain a valuation and finalize a payment plan before Plaintiff's disassociation as Responsible Managing Officer ("RMO"), plus interim payments of \$10,000 pending completion. (Complaint, ¶¶ 25, 40.) Such allegations are sufficient to avoid the statute of frauds. Eighth Cause of Action – Promissory Estoppel A party is estopped to assert the statute of frauds as a defense where the party, by words or conduct, represents that he will stand by his oral agreement, and the other party, in reliance upon that representation, changes his position, to his detriment. (<i>Garcia v. Worlds Savings, FSB</i> (2010) 183 Cal.App.4th 1031, 1040-1041.) Under doctrine of promissory estoppel, a promisor is bound when he should reasonably expect a substantial change of position, either by act or forbearance, in reliance on his promise, if injustice can be avoided only by its enforcement. (Id. at 1041.) "The vital principle is that he who by his language or conduct leads another to do what he would not otherwise have done shall not subject such person to loss or injury by disappointing the expectations upon which he acted." (Ibid.) A promise supporting promissory estoppel must be clear and unambiguous in its terms. (Id. at 1045.) To be enforceable under doctrine of promissory estoppel, a promise need only be definite enough that a court can determine the scope of the duty, and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages. (Ibid.) Here, Plaintiff alleges partial performance which is sufficient to support a claim for promissory estoppel. The Complaint states Plaintiff incorporated the business, transferred all assets, issued 75% of the stock, retained 25% as security, and continued serving as RMO. (Complaint, ¶¶ 26, 41.) Accordingly, the demurrer to the first, second, and eighth causes of action is OVERRULED. <u>Fraud Based Claims – Fourth, Fifth, and Sixth Causes of Action</u> Defendants demur to the fourth (fraud), fifth (constructive fraud), and sixth (fraud by concealment) on the grounds that

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		the allegations do not satisfy the heightened particularity requirement. While Defendants argue these allegations do not specify who said what to whom, when and where, and how the misrepresentations were made, or how Plaintiff detrimentally relied on such misrepresentations, the court finds the Complaint contains sufficient allegations in paragraphs 75-83 to state a claim for fraud. Defendants also argue that Plaintiff's claim for constructive fraud fails because it requires a confidential or confidential relationship. The Complaint, however, alleges a fiduciary relationship based on Defendants assuming the role of majority shareholder in the Corporation, with Plaintiff becoming the minority shareholder. (Complaint, ¶ 66.) As for the fraudulent concealment claim, Defendants contend they owed no duty to disclose specific facts to Plaintiff. Plaintiff has alleged the existence of a fiduciary duty which would give rise to a duty to disclose. Accordingly, Plaintiff has stated sufficient facts to support his claim for fraud, constructive fraud and fraudulent concealment, and the demurrer to these causes of action is OVERRULED. <u>Third Cause of Action – Breach of Fiduciary Duty</u> The Complaint alleges Plaintiff was a minority shareholder in the Corporation and Defendants assumed majority ownership and operational control of the Corporation pending completion of the Agreement. (Complaint, ¶ 66.) Defendants breached their fiduciary duty, among other things, by engaging in self-dealing and misappropriating corporate assets, thereby causing Plaintiff damages. (Complaint, ¶¶ 67, 70.) Such allegations are sufficient to state a cause of action for breach of fiduciary duty. Accordingly, the demurrer to the third cause of action is OVERRULED. <u>Seventh Cause of Action – Financial Elder Abuse</u> Pursuant to Welf. & Inst. Code §15610.30, subd. (a), "'financial abuse' of an elder or dependent adult occurs when a person or entity does any of the following: (1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both."

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		Welf. & Inst. Code §15610.30, subd. (b) provides that "A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult." Here, the Complaint alleges Defendants entered into the Agreement with Plaintiff for the purchase of the family business with the intent to defraud Plaintiff and take possession of the Corporation without Plaintiff's knowledge or consent, and without fair compensation. This is sufficient to state a claim for elder abuse. Accordingly, the demurrer to the seventh cause of action is OVERRULED. <u>Ninth Cause of Action – Unjust Enrichment</u> <i>Durell v. Sharp Healthcare</i> (2010) 183 Cal.App.4th 1350, provides, "[T]here is no cause of action in California for unjust enrichment. Unjust enrichment is synonymous with restitution." (Id. at 1370.) Courts will construe the cause of action as a quasi-contract claim seeking restitution. (<i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 231.) "[R]estitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason. A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement." (Ibid.) In this case, Plaintiff has stated a claim that Defendants obtained control of the Corporation through fraud. This is sufficient to obtain restitution. Accordingly, the demurrer to the ninth cause of action is OVERRULED. <u>Tenth Cause of Action - Conversion</u> The elements of the tort of conversation are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a matter that is inconsistent with the plaintiff's property rights; and (3) resulting damages. (<i>Regent Alliance Ltd. v. Rabizadeh</i> (2014) 231 Cal.App.4th 1177, 1181.) The plaintiff must prove a

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		specific, identifiable sum of money that was taken from it. (<i>Welco Electronics, Inc. v. Mora</i> (2014) 233 Cal.App.4th 202, 216.) "California cases permitting an action for conversation of money typically involve those who have misappropriated, commingled, or misapplied specific funds held for the benefit of others." (Ibid. [internal citations omitted].) Here, Plaintiff alleges Defendants wrongfully obtained from him 25% of his Retained Shares by signing documents via electronic signature through DocuSign that divested him of the Retained Share. Defendants have also entered into an agreement with a third party to sell the Corporation and Plaintiff's ownership interest in the Corporation despite the fact the Retained Shares were never lawfully acquired. (Complaint, ¶ 138.) Although the Complaint does not identify a specific value for the Retained Shares, such shares are capable of valuation. Therefore, Plaintiff has stated sufficient facts to state a cause of action for conversion. Accordingly, the demurrer to the tenth cause of action is OVERRULED. <u>Eleventh Cause of Action – Accounting</u> "An action for accounting has two elements: (1) 'that a relationship exists between plaintiff and defendant that requires an accounting' and (2) 'that some balance is due the plaintiff that can only be ascertained by an accounting.'" (<i>Sass v. Cohen</i> (2020) 10 Cal.5th 861, 869.) Here, Plaintiff alleges a fiduciary/confidential relationship between the parties and that he is owed money for Defendants' wrongful taking of ownership of the Corporation. Accordingly, the demurrer to the eleventh cause of action is OVERRULED. <u>Twelfth Cause of Action – Rescission and Restitution</u> As stated above, Plaintiff has alleged grounds for restitution. As for rescission, a party may rescind if "the consent of the party rescinding, or of any party jointly contracting with him, was given by mistake, or obtained through duress, menace, fraud, or undue influence, exercised by or with the connivance of the party as to whom he rescinds." (Civ. Code § 1689.) Plaintiff has alleged sufficient grounds for rescission.

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		Defendants request for sanctions is DENIED. Accordingly, the demurrer to the twelfth cause of action is OVERRULED. MOTION TO STRIKE Defendants Christopher Hurtado, Hayley Jane Hurtado, Superior Roofing Systems, inc., and Jeffrey B. Moreno's Motion to Strike portions of the Complaint is DENIED. Defendant seeks to strike allegations of the FAC regarding the following portions of the complaint: 1. all allegations and prayers seeking punitive damages and attorneys' fees where no statute or contract authorizes them, 2. fraud-based counts that do not meet particularity standards and cannot carry punitive relief, 3. scandalous and conclusory allegations premised on alleged "DocuSign" conduct and purported "elder abuse" that are unsupported by specific facts, and 4. duplicative equitable remedies that are not standalone causes of action in Plaintiff Domenic Valvano's ("Plaintiff") Complaint. Code of Civil Procedure section 436 provides, "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." Defendants contend Plaintiff is not entitled to punitive damages because the fraud based counts do not support a claim for punitive damages. Based on the court's ruling that Plaintiff stated claims for fraud, and Defendants' lack of argument as to why punitive damages are disallowed, the motion is DENIED as to punitive damages. Attorney fees are only recoverable as authorized by contract, statute, or law. (See CCP § 1033.5(a)(10)(A),(B) & (C).) Here, attorney fees are authorized under the Elder Abuse Law and Welfare & Institutions Code § 15657.5. Therefore, the motion as to attorney fees is DENIED. Regarding "scandalous allegations" and Plaintiff's claim for elder abuse, the court finds Plaintiff has stated a claim for

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		financial elder abuse. Therefore, the motion to strike allegations related to elder abuse is DENIED. Defendants do not state what duplicative causes of action it seeks to strike. Therefore, the motion as to this issue is also DENIED. PLAINTIFF’S MOTIONS Plaintiff Domenic Valvano’s Motion to Strike is DENIED. Plaintiff seeks an order striking defendants’ demurrer and motion to strike for failing to engage in a meaningful meet and confer prior to filing their Demurrer to the Complaint and Motion to Strike. The court acknowledges Defendants’ failure to comply with the Code—which is why these hearings were continued. But failing to meet and confer is no basis to refuse to address the merits of the demurrer or motion to strike. C.C.P. §§ 430.41(a)(4), 435.5(a)(4). Accordingly, the Motion to Strike Defendants’ Demurrer and Motion to Strike is DENIED. The Motion for Sanctions is GRANTED in limited part. Plaintiff has established that defendants failed to properly serve the motions on calendar today, obligating counsel to retrieve a set from the court’s system. Plaintiff incurred \$60.06 in fees for those efforts, which is the amount the court imposes as sanctions against defendants. Defendants are ordered to pay such sanctions to Plaintiff within 20 days. All other requests for monetary sanctions are DENIED. The parties are ordered to comply with their obligations to serve the other side with court filings. Defendants shall answer the complaint within 5 days. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
52.	Marchall v. Creative Interior Center, Inc.	Plaintiffs George Marshall, Norvoc Bioscience, Inc., and Herbalmax, Inc.’s motion for leave to file a Second Amended Complaint is GRANTED. (Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [“policy of great liberality in permitting amendments”].)

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	2023-01339723	Moving parties shall separately electronically file and serve the proposed Second Amended Complaint (Ex. A to moving papers), within five days. Separate e-filing is required to ensure the pleading is properly indexed in the court's electronic filing system. The trial date is continued to October 26, 2026 at 9:30 a.m. in Department C28. Discovery is to remain open based on the new trial date. The court considered the late-filed opposition and reply. Moving parties shall give notice of this ruling.
53.	Bialas v. General Motors LLC 2025-01489084	Plaintiff Michael Robb Bialas's motion for attorney fees and costs is GRANTED in the total amount of \$12,424.90, consisting of \$10,868.50 in attorney fees and \$1,556.40 in costs. (See Civ. Code, § 1794, subd. (d).) <u>Attorney fees.</u> There is no dispute that plaintiff is the prevailing party in this action for purposes of attorney fees and costs. (See Civ. Code, § 1794, subd. (d); <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 1259-1264; see also Kay Decl. ¶¶ 13-14; Morrow Decl. ¶ 7; Mtn. Memo. P&As at p. 1.) Further, defendant does not challenge the reasonableness of the rates charged. The court finds that all of the hours claimed were reasonably incurred in conduct of this litigation, contrary to defendant's contentions. (See Morrow Decl. ¶ 8, Ex. 1 [time records].) As for the time requested to take the deposition of defendant's PMK, defendant's recitation of events is incomplete. On 11/6/25, the day after the PMK deposition, plaintiff's counsel (1) spoke with their plaintiff "re settlement/acceptance," and (2) informed defendant that plaintiff would accept their offer to repurchase the vehicle. (Morrow Decl. at Ex. 1 [11/6/25 entries]; Kay Decl. ¶ 12.) The final settlement breakdown and formal release and settlement agreement came much later, and plaintiff did not execute the settlement and release until 1/26/26. (Kay Decl. ¶ 14; see Morrow Decl. at Ex. 1 [11/2025-1/2026 entries].) As such, plaintiff was entitled to take the PMK deposition when he did and did not act unreasonably in proceeding with it. It is not uncommon for settlement negotiations to fall through, and plaintiff was not required to continue the deposition merely because the parties were contemplating settlement.

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		<u>Costs</u>. The court finds that all \$1,556.40 in costs were reasonably incurred and are reasonable in amount. (See Civ. Code, § 1794, subd. (d); <i>Warren v. Kia Motors America, Inc.</i> (2018) 30 Cal.App.5th 24, 42-43 [the phrase “costs and expenses” covers items not included in the statutory definition of “costs” set forth in Code Civ. Proc., § 1033.5]; see also Code Civ. Proc., § 1033.5, subds. (a)(1) [filing fees are recoverable], (3) [deposition costs are recoverable], (14) [efiling fees are recoverable], (c); Morrow Decl. ¶ 9, Ex. 2 [listing costs incurred in this action under penalty of perjury].) Defendant has failed to demonstrate otherwise. (See <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774 [burden].) The court orders this case dismissed, without prejudice with the court retaining jurisdiction to enforce the terms of the settlement pursuant to C.C.P. § 664.6. The OSC scheduled for July 27, 2026 is vacated. Plaintiff shall give notice of this ruling.
54.	The Summit at Turtle Ridge Community Association v. Sheng 2025-01494328	Cross-Defendant The Summit at Turtle Ridge Community Association’s motion for attorney fees and costs against Cross-Complainant Jie Sheng is GRANTED. (Code Civ. Proc. §425.16, subd. (c)(1).) Cross-Defendant Leyla Dennis’ motion for attorney fees and costs against Cross-Complainant Jie Sheng is GRANTED. (Code Civ. Proc. §425.16, subd. (c)(1).) Cross-Defendant Summit filed a special motion to strike Cross-Complainant Jie Sheng’s First Amended Cross-Complaint pursuant to Code Civ. Proc. §425.16. On 3/16/26, the Court granted the motion in full. Cross-Defendant Dennis filed a special motion to strike Cross-Complainant Jie Sheng’s First Amended Cross-Complaint pursuant to Code Civ. Proc. §425.16. On 3/16/26, the Court granted the motion in part and denied the motion in part. Pursuant to Code Civ. Proc. § 425.16, subd. (c), a party who brings a successful motion to strike is entitled to mandatory attorney fees. (<i>Ketchum v. Moses</i> (2001) 24 Cal. 4th 1122, 1131.) Additionally, a party whose motion to strike is partially successful may still be a prevailing party and recover fees connected with the successful aspects of the motion, provided the moving party gained a practical benefit by prevailing on the motion. (See <i>Moran v. Endres</i> (2006) 135 Cal.App.4th 952, 954; <i>Jackson v. Yarbray</i> (2009) 170 Cal.App.4th 75, 82.)

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		This does not, however, mean that the prevailing party is entitled to receive whatever fee award it requests. (<i>Christian Research Institute v. Alno</i> (2008) 165 Cal. App. 4th 1315, 1321.) The attorney's fees awarded must be reasonable. (<i>Ketchum, supra</i>, 24 Cal. 4th at 1133; <i>Cabral v. Martins</i> (2009) 177 Cal. App. 4th 471, 491 ("[A] defendant who brings a successful special motion to strike is entitled only to reasonable attorney fees and not necessarily to the entire amount requested.").) After reviewing Cross-Defendants' evidentiary submissions in support of the Motions, the Court finds that attorney Le's hourly rate of \$485/hour is reasonable and in line with what a similarly experienced attorney practicing in this market would charge. (Le Decl., ¶¶ 3-5.) With respect to the number of hours reasonably expended, counsel's verified time records should be "entitled to credence in the absence of a clear indication the records are erroneous." (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal. App. 4th 359, 396.) The court finds that counsel's breakdown of the time spent on the motions to strike demonstrate that the hours sought were reasonable and necessary to bring the motions and the costs Cross-Defendants seek to recover are justified. Furthermore, with respect to the Dennis motion, counsel has appropriately adjusted the time records to reflect recovery only for time expended in connection with the successful aspects of the motion. Cross-Complainant has not opposed the motions and offers no argument as to the reasonableness of the hourly rate or hours expended in connection with the motions. Accordingly, the motions are granted in full. Cross-Complainant shall pay Cross-Defendant The Summit at Turtle Ridge Community Association \$38,764 in fees and costs, consisting of \$38,654.50 (70.7 hours at \$485/hour) in attorneys fees and \$109.66 in costs. Cross-Complainant shall pay Cross-Defendant Leyla Dennis \$28,617.15 in fees and costs, consisting of \$28,120.30 (57.98 hours at \$485/hour) in attorneys fees and \$496.85 in costs. According to Cross-Complainant's conditional non-opposition, the parties have apparently entered into a stipulation regarding the issue raised in these motions. The parties shall be prepared to discuss the substance of the stipulation and

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		proposed order as it pertains to any collection efforts related to this court's order of attorney fees and costs. Moving Party shall provide notice of these rulings.
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56.	Bauer v. Likhterman 2021-01214086	The court orders the motion for charging order OFF CALENDAR, as plaintiff has filed an acknowledgment of satisfaction of judgment. (ROA 210).
57.	Baah v. Monetary Inquisition Group LLC 2024-01393282	Plaintiff Alex Baah's motion for reconsideration is DENIED. "It is settled law that a motion for reconsideration is ineffectual if it is filed after entry of judgment" and that Code of Civil Procedure section 1008 "applies only to applications for interim orders." (<i>Marshall v. Webster</i> (2020) 54 Cal.App.5th 275, 281; see <i>Branner v. Regents of University of California</i> (2009) 175 Cal.App.4th 1043, 1048 ["A motion to reconsider is not valid if it is filed after the final judgment is signed"].) "The issue is jurisdictional. Once the trial court has entered judgment, it is without power to grant reconsideration." (<i>APRI Ins. Co. v. Superior Court</i> (1999) 76 Cal.App.4th 176, 181; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 859, fn. 29 ["After entry of judgment, the superior court [does] not have jurisdiction to entertain or decide a motion for reconsideration"].) Plaintiff shall give notice of this ruling.
58.	Rogers v. Guzman 2023-01301897	The hearing on the claim of exemption by plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers, and the opposition by defendants / judgment creditors Angel Lupe Guzman and Arijet Corporation is CONTINUED to August 10, 2026 at 2:00 p.m. in Department C28. First, there is no proof of service of defendants / judgment creditors' Opposition to the Claim of Exemption (ROA 613). (Code Civ. Proc., §§ 703.550, subd. (a), and 703.570, subd. (b).) Second, there is no record that any claim of exemption has been filed with the court. (Code Civ. Proc., §§ 703.550, subd. (a) ["Upon the filing of the copies of the notice of opposition and notice of motion, the levying officer shall promptly file the claim of exemption with the court"], 703.580, subd. (c)

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		[“both” the claim of exemption and opposition “shall be received in evidence”).] Defendants / judgment creditors shall file a copy of the claim of exemption, along with any other documents served on defendants / judgment creditors by the levying officer [such as financial statements if applicable], at least five court days prior to the continued hearing date. (Code Civ. Proc., § 703.580, subd. (c) [court’s discretion to continue hearing for additional evidence].) Defendants / judgment creditors Angel Lupe Guzman and Arijet Corporation shall give notice to: (1) plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers; (2) counsel for plaintiff William Rogers, Robert D. Walters, 1440 N. Harbor Blvd., Suite 900, Fullerton, CA 92835; and (3) the levying officer, Orange County Sheriff's Dept., 909 N. Main Street, Suite 2, Santa Ana, CA 92701.
59.	Ceja v. Volkswagen Group of America, Inc. 2025-01479621	Defendants Volkswagen Group of America, Inc. and Audi South Coast’s motion for judgment on the pleadings is DENIED. (Code Civ. Proc. §438, subd. (c).) “A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.’ [Citation.] As with a demurrer, ‘[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.’ [Citations.]” (<i>Eckler v. Neutrogena</i> (2015) 238 Cal.App.4th 433, 439; Code Civ. Proc., § 438, subd. (d); see <i>Hopp v. City of Los Angeles</i> (2010) 183 Cal.App.4th 713, 717 [“A motion for judgment on the pleadings is equivalent to a general demurrer, and the courts treat all properly pleaded material facts in the complaint as true”).] A trial court’s determination of a motion for judgment on the pleadings accepts as true the pleading’s factual allegations, and it gives them a liberal construction. (<i>Gerawan Farming, Inc. v. Lyons</i> (2000) 24 Cal.4th 468, 515-516.) <u>Cause of Action 5 – Negligent Repair</u> The first amended complaint (“FAC”) sufficiently alleges the ultimate facts to state a cause of action for negligent repair. (See FAC ¶¶ 74-77.) Defendants’ argument that this claim is barred by the economic loss rule is not persuasive. The duty to use ordinary care in performing repairs to a vehicle is independent of Audi South Coast’s contractual duty. The economic loss rule does not apply to bar negligence claims arising from deficient performance of a contract for services.

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		(See <i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777.) <u>Cause of Action 6 – Fraudulent Inducement – Concealment</u> Defendants argue that the Sixth Cause of Action is deficient because (1) it is not pleaded with particularity; (2) the economic loss rule bars tort remedies; and (3) there is no transactional relationship alleged sufficient to constitute a duty to disclose. None of these arguments is persuasive. “[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (<i>Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248; <i>Dhital v. Nissan North America</i> (2022) 84 Cal.App.5th 828, 843.) The “ ‘particularity requirement necessitates pleading <i>facts</i> which show how, when, where, to whom, and by what means the representations were tendered.’ ” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645.) This standard, however, “is harder to apply [] to a case of simple nondisclosure.” (<i>Alfaro v. Community Housing Improvement System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) “One of the purposes of the specificity requirement is ‘notice to the defendant, to furnish the defendant with certain definite charges which can be intelligently met.’ ” (<i>Id.</i>) “Less specificity should be required of fraud claims ‘when ‘it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy,’ [citation]; “[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party” ’ ” (<i>Id.</i>) <u>Specificity</u> VW argues Plaintiffs’ fraudulent concealment claims rely exclusively on conclusory and vague statements. However, Plaintiff has alleged that, prior to and at the time Plaintiff acquired the vehicle, VW had exclusive knowledge that there

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		was a potentially hazardous defect with its 3.0-liter engine and/or its related components, and it obtained such knowledge from pre-release testing data, early consumer complaints about the defect, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by VW and its agents. (See, e.g., FAC ¶84.) Despite having this exclusive knowledge, VW concealed the existence of this material defect from Plaintiff at the time of sale, repair, and thereafter. (See, e.g., FAC ¶86.) Plaintiff alleges VW concealed the defects by either refusing to acknowledge the defect’s existence, or by performing superficial and ineffectual repairs. (<i>Id.</i>) Plaintiffs’ allegations align with the allegations considered, and found sufficiently pleaded, in <i>Dhital</i>, where the plaintiffs alleged Nissan sold vehicles with a defective CVT transmission that caused a potential safety hazard, which it had exclusive knowledge of, yet which it intentionally concealed from consumers in order to induce consumers to purchase vehicles equipped with the defective transmission. (<i>Dhital</i> 84 Cal.App.5th at 833-834.) <u>Economic Loss Rule</u> “[C]laims for fraudulent inducement by concealment [are] not subject to demurrer on the ground it is barred by the economic loss rule.” (<i>Dhital</i>, supra., 84 Cal.App.5th at 840.) Examining <i>Robinson Helicopter Co., Inc. v. Dana Corp.</i> (2004) 34 Cal.4th 979, the <i>Dhital</i> court recognized <i>Robinson</i> crafted an exception to the economic loss rule for contracts that were fraudulently induced. (<i>Dhital</i>, supra., 84 Cal.App.5th at 838.) While “<i>Robinson</i> left undecided whether concealment-based claims are barred by the economic loss rule,” “[w]hat follows from its analysis ... is that concealment-based claims for fraudulent inducement are not barred by the economic loss rule. The reasoning in <i>Robinson</i> affirmatively places fraudulent inducement by concealment outside the coverage of the economic loss rule. We now hold that the economic loss rule does not cover such claims.” (<i>Dhital</i>, supra., 85 Cal.App.5th at 840-841; see also <i>County of Santa Clara v. Atlantic Richfield Co.</i> (2006) 137 Cal.App.4th 292, 331 [alleged misrepresentations refuting and concealing evidence that low levels of lead exposure could be hazardous were sufficient to support a fraud cause of action, notwithstanding the economic loss rule]; see also <i>Harris v. Atlantic Richfield Co.</i> (1993) 14 Cal.App.4th 70, 78 [knowing nondisclosure during the contract

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		formation, or the performance of the contract, allows the injured party to recover in both contract and tort].) The purpose of the fraud exception is to protect the public interest of holding those accountable for committing fraud, deterring such conduct, promoting a business climate free from fraud, and not allowing the economic loss rule to serve as a license to cheat or defraud others. (<i>Robinson Helicopter</i>, supra., 34 Cal.4th at 992; see <i>Munoz v. Patel</i> (2022) 81 Cal.App.5th 761, 779 [in pursuing a valid fraud action, a plaintiff advances the public interest in punishing intentional misrepresentations and in deterring such misrepresentations in the future].) Defendants’ reliance on <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, is misplaced, as <i>Rattagan</i> expressly disclaims that the opinion addresses the issues of “claims of fraudulent inducement by concealment claims as well as the potential interplay with remedies available under the Song-Beverly Consumer Warranty Act” (See <i>Id.</i> at 13, fn. 12.) <u>Transactional Relationship</u> VW argues there is no duty to disclose because no direct transaction between it and Plaintiff is alleged. Plaintiff, however, alleges that she entered into a warranty contract with VW. (See, e.g., FAC ¶¶ 7-8; See also <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844 [rejecting Nissan’s similar arguments because plaintiffs alleged the manufacturer backed the car with an express warranty]; see <i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337, 343 [manufacturer stepped into the role of the distributor and retail seller by issuing an express warranty]; see <i>Fortune v. Nissan North America, Inc.</i> (N.D. Cal., Feb. 16, 2023, No. 22-CV-05247-KAW) 2023 WL 2065043, at *5 [transactional relationship where manufacturer issued a warranty].) In any event, “it is clear in California that an action for deceit does not require contractual privity.” (<i>Shapiro v. Sutherland</i> (1998) 64 Cal.App.4th 1534, 1549.) This is true because “a defendant cannot escape liability if he or she makes a representation to one person while intending or having reason to expect that it will be repeated to and acted upon by the plaintiff.” (<i>Id.</i> at 1548.) Here, Plaintiff alleges VW was well-aware of a serious, and potentially hazardous, underlying defect with its 3.0-liter engine and/or its related components, yet it actively concealed

[illegible]

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